

COPELAND v. TARRANT COUNTY — ONE-PAGE COUNSEL BRIEFING

Title II court-access case · prepared July 23, 2026 · all facts cited to filed documents · documents available on request

THE MATTER

Fifth Circuit No. 26-10389 — Title II/civil-rights appeal from N.D. Tex. No. 4:25-cv-00890-O (dismissal; IFP denied with not-in-good-faith certification; protective IFP motion pending).

SCOTUS No. 25A1368 — emergency application denied by Justice Alito June 11, 2026 (no reasons); Rule 22.4 renewal directed to Justice Sotomayor July 1, 2026. **Texas: In re Q.C. and P.C.**, No. 02-24-00278-CV (Tex. App.—Fort Worth July 9, 2026, mem. op.) — custody judgment affirmed on procedural grounds; narrow motion for rehearing filed July 23, 2026.

THE CORE FACTS, FROM THE RECORD

Applicant is a Texas disability rights attorney with an acquired brain injury, pro se by necessity. At her 2024 custody trial she requested CART real-time captioning as a Title II accommodation. The trial court denied it — "We're not going to do that." (RR Vol. 19). The State Bar of Texas Courtroom Accessibility Guide — listing CART among accommodations Texas courts provide — was in the clerk's record as an attachment to her accommodations motion (CR 885-97) and was invoked on the record by the amicus attorney. The trial court, on the record: "I would like to know if we are [subject to the ADA]. I'm not sure if we are or not." (RR Vol. 19 at 15). Judgment: sole managing conservatorship to the opposing party, supervised visitation, and exclusive medical decision-making over a child with a documented, deteriorating eating-disorder diagnosis.

THE ROUTING — WHY THIS IS A FEDERAL CASE

On July 9, 2026, the Fort Worth Court of Appeals held the ADA claim "is essentially ... a cause of action against the trial court" that was never litigated, and that a Title II claimant "has the remedies, procedures, and rights set forth in [federal law]" — while leaving the judgment fully operative. The federal case the state court pointed to already exists: it is the appeal now pending in the Fifth Circuit. In that court, **Judge Haynes twice recorded she would have granted temporary relief** (May 6 and May 20, 2026 orders). A prefiling ("vexatious litigant") order bars the applicant's pro se filings in Texas trial courts — counsel-filed petitions are outside it — so the evidence of the child's post-judgment medical deterioration currently cannot reach any court without counsel.

THREE SCOPED ASKS

1. Consult or co-counsel on the Fifth Circuit merits briefing (No. 26-10389). **2. Amicus participation** (FRAP 29) by organizations concerned with Title II's application to state-court proceedings. **3. Texas family-law counsel referral** to file a SAPCR modification carrying the post-judgment medical evidence (third-party, objective: labs, growth data, declined specialist treatment).

DOCUMENTS AVAILABLE ON REQUEST

July 9, 2026 opinion and judgment · Rule 22.4 renewal letter · Fifth Circuit orders with dissents · State Bar Guide record excerpt (CR 885-97) · July 23, 2026 motion for rehearing · procedural-convergence memo (counsel work product).

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